

The hearing is vacated, yet the matter remains on calendar on January 26, 2026 at 1:30 p.m. in Department A to allow counsel for Petitioner to file a Second Amended Petition prior to said hearing date. If the Second Amended Petition is filed and confirmed by the Court in advance of the hearing date, the continued hearing date may be vacated.

6. CU0001662 Pankaj Gupta vs. Bamboo Ide8 Insurance Services et al

- Plaintiff's Motion to Disqualify Counsel

Plaintiff's motion to disqualify counsel for Defendants' Bamboo Ide8 Insurance Services ("Bamboo") and Sutton National Insurance Company, Inc. ("Sutton") is denied.

The Court finds Plaintiff lacks standing to bring this motion. Although trial courts have discretion to disqualify an attorney upon motion, case law makes clear that the moving party must have standing before such discretion is proper.

"A trial court's authority to disqualify an attorney derives from the power inherent in every court to control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto." *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145 (internal citations omitted). "Disqualification motions involve a conflict between the clients' right to counsel of their choice and the need to maintain ethical standards of professional responsibility. The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one's choice must yield to ethical considerations that affect the fundamental principles of our judicial process." *Id.* (internal citations omitted).

A "standing" requirement is implicit in disqualification motions. Generally, before the disqualification of an attorney is proper, the complaining party must have or must have had an attorney-client relationship with that attorney. *Great Lakes Construction, Inc. v. Burman* (2010) 186 Cal.App.4th 1347, 1356. In other words, the general rule is that motions to disqualify counsel by someone other than a client or former client are not permitted. "[N]o exception exists that permits a non-client without a legally cognizable interest to disqualify opposing counsel." *Id.* at 1354. "...absent an attorney-client relationship, the moving party must have an expectation of confidentiality." *Id.* at 1356, citing *DCH Health Services Corp. v. Waite* (2002) 95 Cal.App.4th 829. "Thus, some sort of confidential or fiduciary relationship must exist or have existed before a party may disqualify an attorney predicated on the actual or potential disclosure of confidential information. *Id.*, citing *Dino v. Pelayo* (2006) 145 Cal.App.4th 347.

At bar, Plaintiff has not demonstrated he has standing with respect to the instant motion. Moreover, the Court does not find a legally cognizable interest harmed by Defendants' counsel's joint representation exists. While Plaintiff may dislike the joint representation and the varied positions by counsel that may be taken with respect to each defendant, such does not rise to the level of mandating disqualification. It is notable, neither defendant has filed an answer at this stage. Thus, the assertions by Plaintiff as to inconsistent and irreconcilable positions resulting in an inability for this matter to move forward in a fair and just fashion has not occurred and may

never occur. The fact Bamboo asserts no liability under a theory of agency is a common occurrence in many types of civil litigation (e.g. a personal injury action involving an on duty commercial driver sued in his individual capacity in which counsel represents the driver and their employer) and does not give rise to the Court being mandated to disqualify counsel or otherwise presenting a legal basis for same.

Accordingly, Plaintiff's motion for disqualification of defense counsel due to joint representation is denied.

- Defendants' Demurrers

Defendant Bamboo Ide8 Insurance Services' ("Bamboo") and Defendant Sutton National Insurance Company, Inc.'s ("Sutton") demurrers are sustained without leave to amend.

Requests for Judicial Notice

Defendant Bamboo's requests for judicial notice are granted. Defendant Sutton's requests for judicial notice are granted.

Second Amended Complaint

A party may amend its complaint once without leave of the court at any time before the answer or demurrer is filed. Code Civ. Proc. § 472(a). Thereafter, leave is required.

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: ... (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." Code Civ. Proc. § 436. A trial court has discretion to strike a pleading filed in disregard of established procedural requirements, such as where an amendment is filed without obtaining leave to amend. *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613; see also *Loser v. E. R. Bacon Co.* (1962) 201 Cal.App.2d 387, 390.

Here, Plaintiff filed a FAC on June 26, 2025 and then filed a Second Amended Complaint ("SAC") on September 17, 2025 without leave of court. That being the case, the SAC is subject to being stricken leaving the operative pleading the FAC.

The Court acknowledges there was reference to the filing of a SAC in Defendants' Case Management Conference Statement filed on October 2, 2025. However, proper procedure requires a motion be filed or, in the case of agreement, a stipulation and proposed order be filed allowing the filing of a SAC. The Court also acknowledges Defendants' demurrers both relate to the SAC.

According, the Court will postpone striking the SAC pending receipt of a stipulation and proposed order allowing same.

The Court will also continue the both demurrers to the SAC pending receipt of the aforementioned stipulation in the event the stipulation allows the SAC to remain filed as of its original file date. In other words, for the SAC to remain filed as of its original file date and for the pending demurrers along with all related pleadings filed by all parties to go forward as presently pled, the stipulation and proposed order will need to make reference to the parties agreeing their stipulation and resulting order are effective nunc pro tunc to September 17, 2025, and the parties stipulate the Court may rule on the pending demurrers taking into consideration all currently filed pleadings related to same. Moreover, the parties will need to waive any procedural deficiencies regarding the issues indicated herein.

Accordingly, on the Court's own motion, both Demurrers filed by Defendant Bamboo IDE8 and Sutton National Insurance Company, respectively, are hereby continued to January 26, 2026 at 1:30 p.m. in Dept. A. Should the parties fail to submit a stipulation addressing in whole or part the issues set forth above, the Court intends to strike the SAC and deny both demurrers to the SAC as moot.

7. CU0001681 Randy Ryan Agno et al vs. James L Gould, IV. et al

No appearances are required as to the Demurrer. Should a party desire oral argument as to the tentative ruling as to the Demurrer, they shall provide timely request and notice as required.

Appearances are required as to the issue of winterization of the cabins at issue in this matter.

Demurrer

Defendants demurrer is sustained with leave to amend. Plaintiffs are granted leave to amend their third cause of action and must file their amended complaint within ten (10) days of service of notice of this Court's order. Defendants' motion to strike is denied without prejudice.

Legal Standard on Demurrer

"[A] demurrer challenges only the legal sufficiency of the complaint, not the truth or the accuracy of its factual allegations or the plaintiff's ability to prove those allegations." *Amarel v. Connell* (1998) 202 Cal.App.3d 137, 140. A demurrer is directed at the face of the complaint and to matters subject to judicial notice. Code Civ. Proc. § 430.30(a). All properly pleaded allegations of fact in the complaint are accepted as true, however improbable they may be, but not the contentions, deductions, or conclusions of fact or law. *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604. A judge gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context." *Blank, supra*, 39 Cal.3d at p. 318. In the event a demurrer is sustained, leave to amend should be granted where the complaint's defect can be cured by amendment. *The Swahn Group, Inc. v. Segal* (2010) 183 Cal.App.4th 831, 852.

Analysis